

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
ASHLEY ROBERSON and LINDA ROBERSON,

Plaintiffs,

SUMMONS TO THE COMPLAINT

-against-

Index:

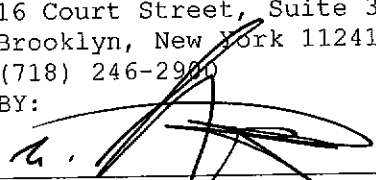
THE CITY OF NEW YORK; P.O. MATTHEW HART, Shield # 026047; P.O. BRIAN BECK, Shield # 24822; P.O. JOHN DOES # 1-10; E.M.T. DAVID FEIN; and E.M.T. JOHN DOES # 1-2; the individual defendant(s) sued individually and in their official capacities,

Basis of Venue:
occurrence of incident -
6141 Broadway, Bronx, NY

Defendants.

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To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
March 20, 2013MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
BY:
Michael Hueston, Esq.Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007; P.O. MATTHEW HART, Shield # 026047, P.O. BRIAN BECK, Shield # 24822, and P.O. JOHN DOES # 1-10, 50th Precinct, Bronx, New York; and E.M.T. DAVID FEIN and E.M.S. JOHN DOES # 1-2, 9 MetroTech Center, Brooklyn, NY, 11201

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COUNTY CLERK
BRONX COUNTY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

ASHLEY ROBERSON and LINDA ROBERSON,

Plaintiffs,

-against-

THE CITY OF NEW YORK; P.O. MATTHEW HART,
Shield # 026047; P.O. BRIAN BECK, Shield
24822; P.O. JOHN DOES # 1-10; E.M.T.
DAVID FEIN; and E.M.T. JOHN DOES # 1-2 ;
the individual defendant(s) sued
individually and in their official
capacities,

Defendants.

COMPLAINT

Index:

Basis of Venue:
occurrence of
incident - 6141
Broadway, Bronx, NY

Jury Trial Demanded

----- X

Plaintiffs Ashley Roberson and Linda Roberson, by and
through their counsel Edward D. Wilford, Esq. and Michael O.
Hueston, Esq., upon information and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which plaintiffs seek relief for the violation of
their rights secured by the laws of the State of New York; New
York State Constitution; 42 U.S.C. §§ 1983 and 1988; and the
Fourth, Sixth, and Fourteenth Amendments to the United States
Constitution. Plaintiffs' claims arise from an incident that
arose on or about December 23, 2011. During the incidents, the
City of New York, and members of the New York City Police

Department ("NYPD") and New York City Department Emergency Services ("FDNY") subjected plaintiffs to, among other things, unlawful search and seizure; false arrest; assault and battery; unreasonable force; failure to intervene; malicious prosecution; implementation and continuation of an unlawful municipal policy, practice, and custom; and respondeat superior liability.

Plaintiffs seek compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incident alleged in this complaint, plaintiffs served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiffs, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiffs' demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment. Plaintiffs remain available for a 50-Hearing hearing.

4. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State New York, Bronx County, because the acts in question occurred in the State of New York, Bronx County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Bronx County.

PARTIES

6. Plaintiffs Ashley Roberson and Linda Roberson reside in the State of New York, Bronx County, at 6141 Broadway, Apt. 5E, Riverdale, NY 10471.

7. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.

8. At all times alleged herein, defendants P.O. Matthew Hart, Shield # 026047, P.O. Brian Beck, Shield # 24822, and P.O. John Does # 1-10 were New York City Police Officers employed with the 50th Precinct, located in Bronx County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

9. At all times alleged herein, defendants E.M.T. David Fein, and E.M.T. John Does # 1-2, were New York City Fire

Department emergency medical technicians employed with an emergency service unit located in Bronx County, New York or other as yet unknown FDNY assignment, who violated plaintiffs' rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

Incident

11. On December 23, 2011, at and in the vicinity of 6141 Broadway, Apt. # 5E, Bronx, New York, and the 50th Precinct, Bronx, New York, several police officers operating from the 50th Precinct, including upon information and belief, defendants P.O. Matthew Hart, Shield # 026047, P.O. Brian Beck, Shield # 24822, P.O. John Does # 1-10, and several emergency technicians operating in the Bronx, New York, including E.M.T. David Fein, and E.M.T. John Does # 1-2, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiffs.

12. On December 23, 2011, at and in the vicinity 6141 Broadway, Bronx, New York, defendants P.O. Matthew Hart, Shield # 026047, P.O. Brian Beck, Shield # 24822, P.O. John Does # 1-10, E.M.T. David Fein, and E.M.T. John Does # 1-2, without either consent, an arrest warrant, a lawful search warrant,

probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime unlawfully arrested plaintiffs.

13. Plaintiff Ashley Roberson was an apparent victim of an assault, and came home to her family's apartment located at 6141 Broadway, Bronx, New York, where her mother Linda Roberson was present.

14. Thereafter, the family called 911, and E.M.T. John Does # 1-2 arrived at plaintiffs' apartment and Linda Roberson talked with them.

15. Soon after Supervisor E.M.T. Fein arrived and insisted, against Ashley Roberson's wishes, that she follow his and E.M.T. John Does # 1-2's directions.

16. E.M.T. Fein, and E.M.T. John Does # 1-2 refused to honor Ashley Roberson's right to refuse medical treatment, and used force against Ashley Roberson and Linda Roberson to achieve this unlawful end.

17. E.M.T. Fein and E.M.T. John Does # 1-2 left the apartment.

18. Thereafter, E.M.T. Fein, and E.M.T. John Does # 1-2 called the NYPD and P.O. Hart, P.O. Beck, and, P.O. John Does # 1-10 arrived at the apartment and entered plaintiffs'

apartment without an arrest warrant or consent, and falsely arrested plaintiffs.

19. P.O. Hart, P.O. Beck, and, P.O. John Does # 1-10 maliciously, gratuitously, and unnecessarily grabbed plaintiffs and placed excessively tight handcuffs on their wrists.

20. The defendant officers took plaintiffs to the 50th Precinct for arrest processing, including a search incident to arrest, and then Central Booking for arraignment.

21. In order to cover up their illegal actions, P.O. Hart, P.O. Beck, and, P.O. John Does # 1-10, E.M.T. Fein, and E.M.T. John Does # 1-2, pursuant to a conspiracy, falsely and maliciously told the Bronx County District Attorney's Office that plaintiffs had committed various crimes, including assault.

22. The defendants made these false allegations, despite the fact that they had no evidence that plaintiffs had committed a crime, to cover up their misconduct, to meet productivity goals and quotas, and to justify overtime expenditures.

23. Plaintiffs were arraigned and released, on \$250.00 bail each, from Central Booking on December 25, 2011.

24. The criminal cases against plaintiffs were dismissed on or about March 1, 2013, terminating in their favor.

General Allegations

25. The individual defendants acted in concert in committing the above-described illegal acts toward plaintiffs.

26. Plaintiffs did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

27. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiffs had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

28. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their rights.

29. As a direct and proximate result of defendants' actions, plaintiffs experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological

pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

30. Plaintiffs are entitaled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiffs' rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

29. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

30. Defendants unlawfully entered plaintiffs' home without cause, a lawful warrant, or consent.

31. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)

32. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein

33. Defendants unlawfully entered plaintiffs' home without cause, a lawful warrant, or consent.

34. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under New York State law.

THIRD CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

35. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein

36. Defendants falsely arrested plaintiffs without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

37. Accordingly, defendants are liable to plaintiffs for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM

(FALSE ARREST UNDER STATE LAW)

38. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

39. Defendants falsely arrested plaintiffs without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

40. Accordingly, defendants are liable to plaintiffs for false arrest under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

41. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

42. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

43. The individual defendants did not have an objective and/or reasonable basis to use any degree of force against plaintiffs, since plaintiffs were unarmed, compliant, and did not resist arrest and had a right to refuse medical treatment.

44. Those defendants who did not touch plaintiffs, witnessed these acts, but failed to intervene and protect plaintiffs from this conduct.

45. Accordingly, the defendants are liable to plaintiffs for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

46. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

47. Among other things as described above, defendants' search and seizure, battery, false arrest, and unreasonable use of force against plaintiffs placed them in fear of imminent harmful and offensive physical contacts.

48. Accordingly, defendants are liable to plaintiffs under New York State law for assault.

SEVENTH CLAIM

(BATTERY)

49. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

50. Among other things as described above, defendants' search and seizure, false arrest, and unreasonable use of force against plaintiffs were illegal physical contacts.

51. Accordingly, defendants are liable to plaintiffs under New York State law for battery.

EIGHTH CLAIM

(FAILURE TO INTERVENE)

52. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

53. Defendants had a reasonable opportunity to prevent the violations of plaintiffs' constitutional rights, but they failed to intervene.

54. Accordingly, the defendants are liable to plaintiffs for failing to intervene to prevent the violation of plaintiffs' constitutional rights.

NINTH CLAIM

(MALCIOUS PROSECUTION UNDER FEDERAL LAW)

55. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

56. Defendants are liable to plaintiffs for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution against plaintiffs by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court(s), which alleged plaintiffs had committed various crimes; and based upon these false statements, prosecutors prosecuted plaintiffs.

57. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

58. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

59. The above-stated malicious prosecution(s) caused a sufficient post-arraignment liberty restraint on plaintiffs.

TENTH CLAIM

(MALICIOUS PROSECUTION UNDER STATE LAW)

60. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

61. Defendants are liable to plaintiffs for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution against plaintiffs by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court(s), which alleged plaintiffs had committed various crimes; and based upon these false statements, prosecutors prosecuted plaintiffs.

62. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

63. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

ELEVENTH CLAIM

(MONELL CLAIM)

64. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

65. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiffs.

66. Defendant City of New York through the NYPD and FDNY and its officers and emergency service technicians, committed the following unconstitutional practices, customs and policies against plaintiffs: (1) unlawfully entering people's homes; (2) refusing to honor a patient's or citizen's request regarding medical treatment; (3) using unreasonable force on individuals; and (4) fabricating evidence against innocent persons.

67. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers and emergency service technicians who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

68. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately

investigate prior complaints filed against the individual defendants.

69. Further, defendants City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would unlawfully arrest and prosecute innocent individuals, based on false evidence.

70. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

71. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD and FDNY were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

72. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD and FDNY were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

73. The City's failure to act resulted in the violation of plaintiffs' constitutional rights as described herein.

TWELFTH CLAIM

(RESPONDEAT SUPERIOR)

74. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

75. The individual defendants were acting within the scope of their employment as New York City police officers and emergency service technicians when they committed the above described acts against plaintiffs, including falsely arresting, assaulting, and battering plaintiffs.

76. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiffs demands a jury trial and judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
March 20, 2013

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiffs
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com
By:


MICHAEL O. HUESTON

EDWARD D. WILFORD, ESQ.
Attorney for Plaintiff
20 Vesey Street, Suite 400
New York, New York 10007
(212) 528-2741

VERIFICATION

MICHAEL O. HUESTON, ESQ., an attorney at law, duly admitted to the Bar of the State of New York, affirms under penalties of perjury pursuant to CPLR § 2106 to the truth of the following:

I am the attorney for plaintiffs. I have read the forgoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, as to those matters I believe them to be true. I make this verification instead of the plaintiff pursuant to CPLR § 3020 because the plaintiff resides in a different county than where I maintain my office.

Dated: Brooklyn, New York
March 20, 2013

A handwritten signature in black ink, appearing to read 'Michael O. Hueston', is written over a horizontal line.

Michael O. Hueston, Esq.